

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 654

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO POLICE DOGS; AMENDING SECTION 18-7039, IDAHO CODE, TO DEFINE A TERM AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-7039, Idaho Code, be, and the same is hereby amended to read as follows:

18-7039. KILLING AND OTHERWISE MISTREATING POLICE DOGS, POLICE HORSES, SEARCH AND RESCUE DOGS AND ACCELERANT DETECTION DOGS. (1) Definitions:

(a) "Police dog" shall include:

(i) "Bomb detection dog" means a dog trained to locate bombs or explosives by scent;

(ii) "Electronic storage detection dog" means a dog trained to locate electronic storage devices by scent;

~~(ii)~~ (iii) "Narcotic detection dog" means a dog trained to locate narcotics by scent;

~~(iii)~~ (iv) "Patrol dog" means a dog trained to protect a peace officer and to apprehend a person;

~~(iv)~~ (v) "Tracking dog" means a dog trained to track and find a missing person, escaped inmate or fleeing felon.

(b) "Police horse" means any horse ~~which~~ that is owned, or the service of which is employed, by a law enforcement agency for the principal purpose of aiding in detection of criminal activity, enforcement of laws and apprehension of offenders.

(c) "Search and rescue dog" means a dog ~~which~~ that is trained to locate lost or missing persons, victims of natural or man-made disasters, and human bodies.

(d) "Accelerant detection dog" means a dog ~~which~~ that is used exclusively for accelerant detection, commonly referred to as arson canines.

(2) The provisions of this section shall apply to police dogs and police horses used by peace officers, including any used by a corrections officer in the performance of the officer's duties, and to search and rescue dogs and accelerant detection dogs used by peace officers or certified handlers under the supervision of a peace officer. The provisions of this section shall apply when the animals are on duty and when not on duty.

(3) Any person who willfully and maliciously and with no legal justification, and with intent to inflict such injury or death, personally causes the death, destruction, or serious physical injury, including bone fracture, loss or impairment of function of any bodily organ, wounds requiring extensive suturing, or serious crippling, of any police dog, police horse, search and rescue dog or accelerant detection dog, shall be guilty of a

1 felony under this section and shall be punished by imprisonment in the state
2 penitentiary for a period not to exceed five (5) years, or by a fine not to ex-
3 ceed ten thousand dollars (\$10,000), or by both such fine and imprisonment.

4 (4) Any person who willfully, maliciously and with no legal justifica-
5 tion, throws, hurls or projects at a police dog, police horse or search and
6 rescue dog, any rock, object or other substance ~~which~~ that is used in such a
7 manner as to be capable of producing injury and likely to produce injury or
8 kicks, strikes, beats, or torments any police dog, police horse or search and
9 rescue dog is guilty of a misdemeanor and shall be punished by imprisonment
10 for not more than one (1) year or by a fine not exceeding one thousand dollars
11 (\$1,000), or by both such fine and imprisonment.

12 (5) Any person who willfully and maliciously and with no legal justifi-
13 cation, interferes with or obstructs any police dog, police horse or search
14 and rescue dog being used by any peace officer in the discharge of the offi-
15 cer's duties by teasing, agitating, or harassing such animals, or who causes
16 another person or persons, animal or animals, to do likewise, is guilty of a
17 misdemeanor and shall be punished by imprisonment for not more than one (1)
18 year or by a fine not exceeding one thousand dollars (\$1,000), or by both such
19 fine and imprisonment.

20 (6) In any case in which a defendant is convicted of a violation of the
21 provisions of this section, the defendant shall be ordered to make resti-
22 tution to the agency owning the animal and employing the peace officer for
23 any veterinary bills, replacement costs of the animal if it is disabled or
24 killed, and the salary of the peace officer for the period of time his or her
25 services are lost to the agency.

26 (7) The provisions of this subsection do not apply to peace officers
27 or veterinarians who terminate the life of such a police dog, police horse
28 or search and rescue dog for the purpose of relieving the police dog, police
29 horse or search and rescue dog of undue pain or suffering.

30 SECTION 2. An emergency existing therefor, which emergency is hereby
31 declared to exist, this act shall be in full force and effect on and after
32 July 1, 2026.